

IN THE HONORABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA
SITTING IN ITS OCTOBER TERM, A.D. 2024

BEFORE HER HONOR: SIE-A-NYENE G. YUOHCHIEF JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE.....ASSOCIATE JUSTICE
BEFORE HIS HONOR: YUSSIF D. KABA.....ASSOCIATE JUSTICE
BEFORE HIS HONOR: YAMIE QUIQUI GBEISAY, SR.....ASSOCIATE JUSTICE
BEFORE HER HONOR: CEANEH D. CLINTON JOHNSON.....ASSOCIATE JUSTICE

Mr. Diego Pol of the City of Monrovia, Liberia.....Movant)

Versus

) MOTION TO DISMISS APPEAL

His Honor James E. Jones, Resident Judge, Debt Court)
for Montserrado County, Republic of Liberia)

.....1st Respondent)

And

Mr. Kpedee Woiwor of the City of Monrovia, Liberia)

.....2nd Respondent)

GROWING OUT OF THE CASE:

Mr. Kpedee Woiwor of the City of Monrovia, Liberia)

.....Plaintiff)

Versus

) ACTION OF DEBT BY

) ATTACHMENT

Mr. Diego Pol of the City of Monrovia, Liberia)

.....Defendant)

Heard: October 23, 2024

Decided: December 19, 2024

MR. JUSTICE GBEISAY DELIVERED THE OPINION OF THE COURT

This motion to dismiss appeal filed by Diego Pol (movant herein) is premised on grounds that Kpedee Woiwor (respondent herein) did not file his bill of exceptions and his appeal bond within the time allotted by statute and that the respondent surety attached no certification by a government entity with regulatory responsibilities for insurance companies confirming that it has assets in Liberia sufficient enough to cover the obligation undertaken in the bond filed by the respondent.

This case was originally a debt action filed by the respondent herein against the movant herein, after pleadings rested, the movant filed a motion for judgment during trial on grounds that the respondent failed to prove his allegations against the movant by the preponderance of the evidence. The respondent herein filed his resistance to the said motion, the trial court, after entertaining arguments on the motion, granted the motion thereby prompting the respondent to except and announce an appeal to this Court.

It is clear from the facts that the ruling by the trial court was made on June 3, 2022, but the parties were not issued the ruling on the same day because of no faults of the parties as the trial court had printer issues. The movant has however argued that the ruling was later made available on June 13, 2022, and that based upon the calculation, the respondent should have legally filed his bill of exception within a ten (10) day period commencing June 13, 2022, and subsequently file his appeal bond and notice of completion of appeal within sixty days therefrom.

The movant has argued that the respondent surety did not attach any certification to show that it has assets and because of this he filed a motion to dismiss before the lower court while also arguing about the timing of the respondent filing of his bill of exceptions, appeal bond and notice of completion of appeal.

The respondent resisted this averment of the movant arguing that the movant's argument that his surety did not attach any certification to show that it has assets in Liberia sufficient enough to cover the obligation it undertook in the bond filed by him (respondent) and therefore his appeal should be dismissed is baseless as this is not a ground for dismissing an appeal, because, the surety assets are attached in the certified records which shows that it has assets to cover the appeal, additionally, respondent has argued that the ruling from which it appealed is not a money judgment and as such, there is no real expenses or loss to be covered by the surety.

We need not however dwell on this issue for long as a perusal of the records certified to this Court shows no mention of the deficit of the surety as alleged by the movant. We note from the records certified to this Court that the movant's main contention was the respondents' failure to timely file his bill of exceptions and appeal bond as required by statute.

To support his argument that the respondent failed to file his bill of exceptions and appeal bond within the statutory time, the movant has argued that the respondent filed his bill of exceptions on July 19, 2022, and his appeal bond and notice of completion of appeal on August 31, 2022. The movant has argued that the dates on which the respondent filed his

bill of exceptions and appeal bond and notice of completion of appeal are way beyond the statutory period which warrants a dismissal of the appeal by this Court. The movant had earlier filed a motion to dismiss the appeal in the trial court but the trial court after entertaining arguments denied the said motion on grounds that because the respondent had filed his bill of exceptions, appeal bond and notice of completion of the appeal, the trial court had no jurisdiction to dismiss the said appeal as the matter was legally before the Supreme Court.

The respondent resisted the movant's motion arguing that the movant's motion is filed in bad faith and the same should be denied. The respondent has conceded that indeed final ruling was entered by the trial court on June 3, 2022, granting the movant's motion for judgment during trial and that the parties did not receive the ruling on the same day because the trial court had issues with its printer but the clerk of court was instructed in open court to deliver copies of the ruling to the parties whenever the ruling was available and no specific date was mentioned or designated for the ruling to be distributed among the parties. The respondent has argued that he received a copy of the ruling on July 12, 2022, and filed his bill of exceptions on July 19, 2022, which was approved by the trial judge, and filed his appeal bond and notice of completion of appeal on August 29, 2022, all within the statutory period.

From a careful perusal of the records, it is evident that when the final ruling which the respondent appealed from was delivered on June 3, 2022, the parties did not receive copies of the ruling on the same date because of printer issues and the parties were informed that they would be contacted when the ruling was ready. The movant contends that he received his copy on the 13th of June 2022; however, respondent has argued that he received his copy of the ruling on July 12, 2022. There is no evidence in the records to suggest otherwise, the movant was under a legal duty to prove that the respondent did receive a copy of the ruling before the time he (respondent) is claiming he received the ruling as he (movant) is the one alleging that the respondent received a copy of the ruling before the time he (respondent) is claiming to have received the ruling, in the absence of evidence to prove the contrary, it is the movant word against the respondent's word as there is no evidence presented by either side to disprove the other and it is only evidence alone which enables the Court to say with certainty what the matter in dispute. *Universal Printing Press v. Blue Cross Insurance Company*, Supreme Court Opinion, March Term 2015.

It is a rudimentary principle of law in this jurisdiction that the appeal statute begins to toll from the rendition of judgment and service of the said judgment upon the parties by the

court, in other words, the statute begins to run from the moment the appealing party receives the ruling made by the trial tribunal against him. In this case, the respondent has since argued that he received the ruling of the trial court on July 12, 2022, and since there is no evidence in the records to suggest otherwise, especially when no specific date was given by the trial court to the parties to pick up the ruling since it was not delivered on the day the ruling was made, the respondent had up to ten (10) days commencing July 12, 2022 to file his bill of exceptions and sixty (60) to perfect his appeal therefrom. The respondent, the record shows filed his bill of exceptions on July 12, 2022, and filed his appeal bond and notice of completion of appeal on August 29, 2022, all of which dates fall within the time allotted for by statute and as such leaves no ground for the dismissal of the appeal.

Civil Procedure Law Rev. Code 1.51.4 provides the grounds for dismissing an appeal and based upon the facts of this case, the respondent complied with all the statutory provisions of the appeal statute, and as such his appeal cannot be dismissed.

It is therefore our considered opinion that the respondent having received the trial court ruling of July 19, 2022, and filed his ruling and appeal bond and bill of exceptions within the statutory period, his appeal is legally before this Court and since there is no showing of any legal grounds by the movant to dismiss the said appeal, the motion to dismiss must be and the same is hereby denied.

WHEREFORE AND IN VIEW OF THE FOREGOING, the motion to dismiss the respondent's appeal is hereby denied and the Court shall proceed to hear the appeal on its merits. The Clerk of this Court is hereby ordered to docket the case for the hearing of the appeal on its merits. Costs are to abide final determination of the case. AND IT IS HEREBY SO ORDERED.

WHEN THIS CASE WAS CALLED FOR HEARING COUNSELLOR STEPHEN B. DUNBAR OF THE LAW OFFICES OF DUNBAR & DUNBAR APPEARED FOR THE MOVANT. COUNSELLOR JONATHAN T. MASSAQUOI OF THE INTERNATIONAL LAW GROUP APPREARED FOR THE RESPONDENT.

Motion denied.